

26STCP00095 26STCP00095

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCP00095 Hearing Date: August 7, 2026 Dept: 833

Tymera Sashina Finley, Case No. 26STCP00095

Hearing:

August 7, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Housing

Authority of City of Baldwin Park, Judge: Joseph

Lipner

[Tentative] Order Denying

Petition for Writ of Mandate

INTRODUCTION

Petitioner Tymera Sashina Finley

("Petitioner") seeks administrative mandate asking the Court to overturn Respondent Housing Authority of the City of Baldwin Park ("Respondent")'s termination her participation in and receipt of Housing Choice Voucher Program benefits for rental assistance.

Petitioner's

opening brief was wholly deficient in making any sort of argument necessary for the Court to grant the relief requested. Even if the Court considers the conclusory and fragmentary statements provided by Petitioner, the merits still

indicate that there was no abuse of discretion.

Therefore, the
Court DENIES the petition for writ of mandate.

FACTS

Petitioner

was a recipient of assistance from Respondent. Petitioner's benefits were terminated as a result of a violation of a violation of 24 CFR 982.551, which states as follows:

1.

The family must supply any information requested by the PHA or HUD for use in a regularly scheduled reexamination or interim reexamination of family income and composition.

2.

Any information supplied by the family must be true and complete.

3.

The composition of the assisted family residing in the unit must be approved by the PHA. The family must promptly notify the PHA in writing of the birth, adoption, or court-awarded custody of a child. The family must request PHA approval to add any other family member as an occupant of the unit. HACBP Policy: The request to add a family member must be submitted in writing and approved prior to the person moving into the unit. The PHA will determine eligibility of the new member in accordance with the policies in Chapter 3.

4.

Family members must not commit fraud, bribery, or any other corrupt or criminal act in connection with the program.

(AR 8-10.)

Petitioner was entitled to an administrative hearing, and the Hearing Officer issued a decision upholding the termination decision. (AR 203-207.) The Hearing Officer recited

evidence that supported the decision. (Ibid.)

This petition followed.

Neither party provided the Court much of a factual record in its briefing. However, the petition is focused on three issues:

1. whether

Gabriel Smith was actually living with Petitioner without approval;

2. whether

Petitioner's income was overstated such that she did not actually qualify for the program;

3. whether

Petitioner suffered a disproportionate penalty.

DISCUSSION

Under Code of

Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5, subd. (b).)

An agency is

presumed to have regularly performed its official duties. (Evid. Code § 664.) The petitioner seeking administrative mandamus has the burden of proof and must cite to the administrative record to support its contentions. (See *Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143; *Steele v. Los Angeles County Civil Service Commission*, (1958) 166 Cal. App. 2d 129, 137; see also *Alford v. Pierno* (1972) 27 Cal. App. 3d 682, 691.) “[A] trial court must afford a strong presumption of correctness concerning the administrative findings.” (See *Fukuda v. City of Angels* (1999) 20 Cal. 4th 805, 817.) A reviewing court “will not act as counsel for either party ... and will not assume

the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (Fox v. Erickson (1950) 99 Cal.App.2d 740, 742 (Fox).)

Procedural issues support denial of the petition

A memorandum of

points and authorities is required for a noticed mandamus motion. (See Code Civ. Pro. § 1094; California Rules of Court, Rule 3.1113(a).) The absence of a memorandum is an admission that the motion is not meritorious and may be denied. (Rule 3.1113(a).) “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Rule 3.1113(b); Quantum Cooking Concepts, Inc. v. LV Associates, Inc. (2011) 197 Cal.App.4th 927, 934 [Cal. Rules of Court, Rule 3.1113 “rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories”].)

Here, Petitioner

submitted a 2-page memorandum of points and authorities as their opening brief. (5/8/2026 Opening Brief attached to Proof of Service.) Petitioner’s memorandum did not contain any statement of facts, any discussion of statutes, cases, or legal authorities relied upon. It is not the job of this Court to make Petitioner’s arguments for them. (Fox, supra, 99 Cal.App.2d at p. 742.) It is also not appropriate for Petitioner to point to evidence for the first time in reply, when that evidence could have been identified in the opening brief. This rule is to ensure that Respondent has the opportunity to respond to Petitioner’s specific arguments in the only opportunity Respondent has to provide a written brief – the opposition.

Petitioner’s

failure to introduce a substantive memorandum of points and authorities is reason alone for the Court to deny the petition. Below, and in the interests of justice, the Court also reviews several themes that came out of Petitioner’s opening brief.

Petitioner’s claim that Smith was not actually living with
Petitioner

Petitioner argues that

“mailing address use does not establish residency” and “Respondent improperly equated mailing-address use and intermittent childcare assistance with permanent residency.” (Opening Brief, p. 2.) It appears that Petitioner is referring to Gabriel Smith’s residency. Petitioner, however, signed a guest policy with her initial application and approval for the voucher program, which expressly requires: “The Head of Household must provide written notification to the Housing Authority one (1) week in advance but not less than one day after occurrence [of any guests].” (AR 321.)

Gabriel Smith’s

declaration indicates that he has not lived with Petitioner “full-time” since November 2024, which implies that Smith did live full time with Petitioner at the unit in question prior to November 2024. (AR 393.) The W-2 for Mr. Smith that was provided to the Hearing Officer shows that Gabriel Smith’s address for wages he earned in 2023 was the unit in question. (AR 323.) Smith’s credit report also identifies the unit in question as his address of record from August 2023 to May 2025. (AR 327.) Smith was never an approved resident, so this was a violation of Respondent’s regulations, which require that residents must be approved in writing. (AR 203-204.) Respondent also visited Petitioner’s residency and spoke to the landlord, who indicated that a man who was not on the lease was living at the unit and that man’s car was “always parked overnight in front of the office.” (AR 152.)

Petitioner’s

evidence also does not support the fact that Smith was not living at the unit in question. A hotel receipt, a bill, and two declarations only establish that Smith stayed at alternate locations for a very discrete periods of time. (AR 395, 396, 435, 437.) None of the evidence submitted by Petitioner refutes residency during other time periods, either. There is also substantial evidence that Smith used Petitioner’s address to receive mail. (AR 154, 327, 357, 393.)

Other declarations

submitted by Petitioner (such as those from Michelle Scott and Roosevelt Finley) are not signed under the penalty of perjury and lack any personal knowledge sufficient to state where Smith lives. (AR 395-396.)

Petitioner offers

no legal support for her contention in reply that lease records, utility

records, surveillance evidence or “objective proof” are needed to establish that Smith permanently resided in her unit.

Exercising its

independent judgment, the Court finds that Smith was residing at the assisted unit without approval, and he was violating multiple regulations that needed to be followed for Petitioner to get rental assistance.

Petitioner’s claim surrounding identity theft

Petitioner also claims there were identity theft related concerns. These “concerns” appear to relate to allegations that there were incorrect charges on Petitioner’s credit report, which resulted in her income being overestimated.

However,

there was no evidence presented by Petitioner that the identity theft statement, which Petitioner claims took place between 2019-2023, had been provided to Respondent prior to the hearing. (AR 397.) Petitioner also did not provide any evidence she had previously provided any written documentation of the identity theft. (AR 403-404, 785.) Petitioner did provide a police report at the hearing, but this police report had to do with an event that occurred in April 2020, three years before she claims there was incorrect information on her credit report. (AR 404.)

Exercising

its independent judgment, the Court finds that there are insufficient allegations of identity theft to serve as a defense to the Hearing Officer’s finding that Petitioner had not fully reported her income.

Petitioner’s claim that Petitioner suffered a disproportionate penalty

Petitioner

also claims that “Respondent imposed the harshest possible penalty despite the absence of criminal fraud findings, repayment judgments, or conclusive evidence establishing intentional deception.” (Opening Brief, p. 2.) Intentional deception, however, is not a requirement for termination. (AR 976.) Petitioner offers no legal authority to support the contention that a hearing officer must evaluate all mitigating circumstances presented during the administrative

proceedings to determine the punishment. (Reply, p. 8.) The Court will not seek to make Petitioner's argument for her.

CONCLUSION

Respondent's decision was supported by substantial evidence, and there is no evidence that Respondent abused its discretion in upholding the termination of Petitioner's participation in and receipt of Housing Choice Voucher Program benefits for rental assistance.

The Court DENIES the petition for writ of mandate. Pursuant to Local Rule 3.231, subd. (n), Respondent shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: August 7,
2026

Joseph
Lipner

Superior
Court Judge